

SENATE No.

The Commonwealth of Massachusetts

PRESENTED BY:

Patrick M. O'Connor

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to enhancing playground safety.

PETITION OF:

NAME:

Patrick M. O'Connor

DISTRICT/ADDRESS:

First Plymouth and Norfolk

SENATE No.

By Mr. O'Connor, a petition (accompanied by bill) (subject to Joint Rule 12) of Patrick M. O'Connor for legislation relative to enhancing playground safety. Municipalities and Regional Government.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to enhancing playground safety.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 45 of the General Laws is hereby amended by inserting after
2 section 14 the following new section:

3 Section 15. Playground Safety and Enclosures.

4 (a) For the purposes of this section, “public playground” shall mean any outdoor
5 recreational area owned, maintained, or operated by a city or town that contains playground
6 equipment intended for use by children.

7 (b) Every public playground constructed, substantially renovated, or newly designated
8 after January 1, 2026 shall be fully enclosed by a secure perimeter fence with self-closing and
9 self-latching gates to ensure the safety of children, including those with autism spectrum disorder
10 and other developmental disabilities who may be at risk of elopement.

11 (c) All existing public playgrounds shall be brought into compliance with subsection (b)
12 no later than January 1, 2030.

13 (d) The Department of Public Health, in consultation with the Department of Elementary
14 and Secondary Education, and the Department of Developmental Services, shall promulgate
15 regulations establishing minimum safety standards for such enclosures, including but not limited
16 to height, materials, and gate mechanisms.

17 (e) Municipalities shall be eligible to apply for reimbursement of up to 75 percent of the
18 reasonable costs of compliance under this section through a Playground Safety Grant Program to
19 be administered by the Executive Office of Health and Human Services, subject to appropriation.

20 (f) Nothing in this section shall prevent a municipality from adopting stricter playground
21 safety standards than those required under this section.

22 SECTION 2. The provisions of this act are hereby declared to be severable, and if any
23 such provision or its application to any person or circumstance shall be held invalid, the
24 remainder of this act and its application to persons or circumstances shall not be affected thereby.